

damages if a reasonable officer could have believed that the search comported with the Fourth Amendment.

I

Petitioner Russell Anderson is an agent of the Federal Bureau of Investigation. On November 11, 1983, Anderson and other state and federal law enforcement officers conducted a warrantless search of the home of respondents, the Creighton family. The search was conducted because Anderson believed that Vadaain Dixon, a man suspected of a bank robbery committed earlier that day, might be found there. He was not.

The Creightons later filed suit against Anderson in a Minnesota state court, asserting among other things a claim for money damages under the Fourth Amendment, see *Bivens v. Six Unknown Fed. Narcotics Agents*, 403 U. S. 388 (1971).¹ After removing the suit to Federal District Court, Anderson filed a motion to dismiss or for summary judgment, arguing that the *Bivens* claim was barred by Anderson's qualified immunity from civil damages liability. See *Harlow v. Fitzgerald*, 457 U. S. 800 (1982). Before any discovery took place, the District Court granted summary judgment on the ground that the search was lawful, holding that the undisputed facts revealed that Anderson had had probable cause to search the Creighton's home and that his failure to obtain a warrant was justified by the presence of exigent circumstances. App. to Pet. for Cert. 23a-25a.

The Creightons appealed to the Court of Appeals for the Eighth Circuit, which reversed. *Creighton v. St. Paul*, 766 F. 2d 1269 (1985). The Court of Appeals held that the issue of the lawfulness of the search could not properly be decided on summary judgment, because unresolved factual disputes

¹The Creightons also named other defendants and advanced various other claims against both Anderson and the other defendants. Only the *Bivens* claim against Anderson remains at issue in this case, however.